

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
July 16, 2026
8:30 a.m./1:30 p.m.

16. ASHLEY HIGHTREE V. JEFFREY MCQUARY

25FL0021

On November 13, 2025, Petitioner filed a Request for Order (RFO) seeking custody and visitation orders as well as child support orders. She filed her Income and Expense Declaration concurrently therewith and the parties were referred to Child Custody Recommending Counseling (CCRC). Both documents were served on November 18, 2025, however there is no indication that the CCRC referral was served and Respondent did not appear at the scheduled CCRC appointment.

On December 19, 2025, Petitioner filed and served a Declaration of Ashley Hightree in Support of Request for Visitation Orders.

The parties attended CCRC on March 13, 2026, and were able to reach agreements as to custody and visitation. A report codifying those agreements was prepared and mailed to the parties the same day.

On March 25th, Petitioner filed another RFO seeking attorney's fees and a continuance of the trial date. She concurrently filed a Declaration of Attorney Rebecca Esty-Burke in Support of Petitioner's Request for Order. All required documents, with the exception of the Notice of the Tentative Ruling, were served on April 8th. While this generally would have been untimely service, Petitioner obtained ex parte leave to have the matter heard on a shortened basis. The request was granted and Respondent's time to file a responsive declaration was extended to April 20th.

Respondent filed and served a Responsive Declaration to Request for Order on April 14th.

Respondent filed another Responsive Declaration to Request for Order on April 16th. It appears both were served on April 14, 2026.

Petitioner filed a Declaration of Ron McQuary on April 15, 2026. It was served the same day.

Parties appeared for the hearing on April 23, 2026. The court continued the custody and parenting plan portion of the hearing and rereferred the parties to CCRC. The court set a further review hearing for July 16, 2026. The court adopted the remainder of its tentative ruling.

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Both parties attended the CCRC appointment on May 29, 2026. The parties were unable to reach any agreements. A report with recommendations was filed with the court on May 29, 2026. Copies were mailed to the parties on June 3rd.

Petitioner filed a Supplemental Declaration on June 12, 2026. It was served the same day. Petitioner makes requests regarding the parenting plan and custody orders, including that Respondent provide 30 days' notice for his parenting time in California.

Respondent filed two declarations on July 6, 2026. There is no Proof of Service for either declaration, therefore, the court cannot consider them.

After reviewing the filings as outlined above, the court finds the agreements contained in the March 13, 2026 CCRC report and the recommendations in the May 29th CCRC report to be in the best interests of the minor. They are hereby adopted as the orders of the court. To be clear, all of Respondent's parenting time is to take place in California.

All prior orders not in conflict with these orders remain in full force and effect. Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #16: THE COURT FINDS THE AGREEMENTS CONTAINED IN THE MARCH 13, 2026 CCRC AND THE RECOMMENDATIONS IN THE MAY 29TH CCRC REPORT TO BE IN THE BEST INTERESTS OF THE MINOR. THEY ARE HEREBY ADOPTED AS THE ORDERS OF THE COURT. TO BE CLEAR, ALL OF RESPONDENT'S PARENTING TIME IS TO TAKE PLACE IN CALIFORNIA.

ALL PRIOR ORDERS NOT IN CONFLICT WITH THESE ORDERS REMAIN IN FULL FORCE AND EFFECT. PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS

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